

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 10, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Cervantes v. Chapman Coast Roof Co., Inc. 2026-01556143 Demurrer to Complaint	Defendant Chapman Coast Roof Co., Inc.'s Demurrer to the Complaint is OVERRULED. Plaintiff's 12th cause of action under Labor Code sections 226 and 1174 for failure to provide itemized wage and hour statements seeks both statutory penalties and actual damages. Plaintiff alleges his claim for actual damages includes Plaintiff not being paid wages to which Plaintiff was entitled. (Compl., ¶ 139.) Thus, Plaintiff is not only seeking penalties within their cause of action and the statute of limitations as to the actual damages for unpaid wages is three years. (See <i>Falk v. Children's Hospital Los Angeles</i> (2015) 237 Cal.App.4th 1454, 1469; <i>Castillo v. Glenair, Inc.</i> (2018) 23 Cal.App.5th 262, 287; <i>Novoa v. Charter Communications, LLC</i> (E.D. Cal. 2015) 100 F.Supp.3d 1013, 1025.) Accordingly, Defendant's demurrer is overruled.
2	Fairon v. Vassallo 2026-01552552	Defendant Brian Theiss's Motion to Strike, joined by Defendants Sarie Vassallo, Mikala Vassallo, TheissCare LLC, American Built Science, LLC, and Maiden Legacies LLC, is GRANTED with 30 days leave to amend.

Motion to strike Joinder to Motion to Strike Review Hearing re Notice of Related Cases	The Court finds the Complaint is brought in violation of the public policies supporting the long-standing California rule prohibiting a corporation from representing itself through an agent who is not an attorney. "[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145.) "Several rationales lie behind the rule. First, a corporation, as an artificial entity created by law, can only act in its affairs through its natural person agents and representatives. If the corporate agent who would likely appear on behalf of the corporation in court proceedings, e.g., an officer or director, is not an attorney, that person would be engaged in the unlicensed practice of law. [¶] Second, the rule furthers the efficient administration of justice by assuring that qualified professionals, who, as officers of the court are subject to its control and to professional rules of conduct, present the corporation's case and aid the court in resolution of the issues. Third, the rule helps maintain the distinction between the corporation and its shareholders, directors, and officers. (Id. [citations omitted].) Although generally, the rights under a contract which are not purely personal in nature may be assigned to another. (<i>Curtis v. Kellogg & Andelson</i> (1999) 73 Cal.App.4th 492, 504.) Here, Plaintiff is the sole owner of Lunarspace and purportedly assigned Lunarspace's rights under the contracts to himself. Allowing Plaintiff to do so would circumvent the rule requiring corporations to be represented through an attorney and allow any corporation, especially single member entities, to be represented by an agent who is not an attorney. This practice is expressly rejected by several federal courts and some state courts. (See <i>U.S. v. High Country Broadcasting Co., Inc.</i> (9th Cir. 1993) 3 F.3d 1244, 1245; <i>Capital Group, Inc. v. Gaston & Snow</i> (E.D. Wis. 1991) 768 F.Supp. 264, 266; <i>Mercu-Ray Industries, Inc. v. Bristol-Myers Co.</i> (S.D.N.Y. 1974) 392 F.Supp. 16, 18 aff'd 2nd Cir. 1974) 508 F.2d 837; <i>Roberts v. State, Dept. of Revenue</i> (Alaska 2007) 162 P.3d 1214, 1220; <i>Yogi Bear Membership Corp. v. Stalnaker</i> (Ind. Ct. App. 1991) 571 N.E.2d 331 333-334.) This Court finds the non-binding decisions to be instructive and elects to follow their guidance to prevent the circumvention of the rule and the public policies which support it.
--	---

		The failure to appear through an attorney is a defect which may be corrected and not an absolute bar to jurisdiction. (<i>CLD, supra</i>, 120 Cal.App.4th 1141, 1149.) Thus, leave to amend is granted.
3	Garcia v. Di Paolo Whetmore, LLC 2026-01553753 Motion to Strike Portions of Complaint	Defendant Maria Di Paolo's Motion to Strike Portions of Complaint is DENIED. Defendant moves to strike Plaintiff's claim for punitive damages at paragraphs 39-44 of the Complaint and prayer for damages. Legal Standard: A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210.) "[A]conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 895-896.) Summary of Complaint: Plaintiff alleges Defendant was the owner of a German Shepherd that attacked Plaintiff while he was walking on a public sidewalk in Huntington Beach, injuring Plaintiff's hand. (Complaint, ¶¶ 5, 12-17.) Plaintiff alleges Defendant's dog had attacked another neighbor and their dog approximately two weeks earlier, yet Defendant failed to adequately train, restrain, neuter, and/or confine the dog. (Id. at ¶¶ 14, 20-26.) Plaintiff alleges claims for strict dog bite liability under Civil Code section 3342, negligence, and punitive damages.

		Application: Defendant contends Plaintiff's complaint does not meet the high standard for pleading punitive damages because there is no showing Defendant "intended to injure Plaintiff." (Motion, 5:9.) "At most, the Complaint alleges that Defendant Maria Di Paolo had prior notice of a risk and failed to take sufficient measures to restrain, supervise, confine, or control the dog. Those allegations may be relevant to negligence. They are not enough to transform an alleged failure to control a dog into conduct punishable by exemplary damages." (Id. at 5:14-17.) Plaintiff responds that Defendant's specific knowledge of the dog's dangerous propensity to attack others is sufficient to demonstrate malice based on a theory of conscious disregard for the safety of others. (Opp., p. 1.) At the pleading stage, Plaintiff has adequately alleged facts, including a recent prior attack by Defendant's dog and failure to take remedial action thereafter, which could show that "defendant was aware of the probable dangerous consequences of [her] conduct, and that [she] willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court, supra</i>, 24 Cal.3d at 895-896.) Therefore, the motion is denied.
4	Ally Bank v. Soto 2026-01545141 Application for Writ of Possession After Hearing	Plaintiff has filed an application for writ of possession under Code of Civil Procedure section 512.010 et seq., which allows Defendant to post a deposit and obtain wrongfully-detained property prior to trial if Plaintiff demonstrates the probable validity of their claim. However, Plaintiff has not filed a proof of service of either the Complaint or the present Application. Although such relief may be granted ex parte in specific cases where the property was feloniously taken or the property is a credit card (Code Civ. Proc. § 512.020(b), it generally requires service on the Defendant of the summons/complaint, notice of application/hearing, and a copy of the application and supporting affidavit. (Code Civ. Proc. § 512.030.) Here, Plaintiff hasn't filed a proof of service of any documents in this case on Defendant. Therefore, the application should be denied without prejudice. Plaintiff Ally Bank's Application for Writ of Possession is DENIED without prejudice.
5	James v. Thatcher 2025-01457604	The motion of attorney Ashkahn Mohamadi be relieved as for plaintiff Presley James is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as

	Motion to Be Relieved as Counsel OSC re Settled Case	counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
7	Law Offices of Mark B. Plummer PC v. Norred 2025-01502837 Motion to Disqualify Attorney of Record CMC	Defendant Mark W. Norred, CPA's motion to disqualify Mark Plummer, Law Offices of Mark B. Plummer, PC from representing plaintiffs Law Offices of Mark B. Plummer, Mark Plummer and Jocelyn Plummer is DENIED. "A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code Civ. Proc. § 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice." (<i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 581.) "Standing generally requires that the plaintiff be able to allege injury, that is, an invasion of a legally protected interest." (<i>Great Lakes Constr., Inc. v. Burman</i> (2010) 186 Cal.App.4th 1347, 1356.) "Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney [to demonstrate standing]." (<i>Id.</i>) Even without an attorney-client relationship, the movant must still show that "some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information." (<i>Id.</i>) "In evaluating alleged conflicts, a court first looks to whether the challenged representation is concurrent or successive." (<i>Walker v. Apple, Inc.</i> (2016) 4 Cal.App.5th 1098, 1106.) The First Amended Complaint alleges that defendant, Mark W. Norred, CPA, is an accountant who provided Plaintiffs with tax return preparation and representation in responding to an audit of the tax returns that Norred had prepared. (FAC, ¶ 3.) Plaintiffs allege that Norred, negligently represented Plaintiffs in the 2017, 2018 and 2019 tax year audits. (FAC, ¶ 6.) Norred seeks to disqualify Law Offices of Mark B. Plummer, PC and Mark Plummer (collectively, "Plummer") from representing Plaintiffs on the grounds Plummer represented him individually and as an officer and majority owner of Drake Traffic Control Services, Inc. dba as Mallard Construction Inc. (Norred Decl., ¶ 2.) Norred contends Plummer represented him in the following five cases. (1) Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen, Case No. 30-2021-01204687. (Norred Decl., Ex. 4); (2) Paveco Construction v. LA Department of Water & Power, Case No. 24STCP04154 (Norred Decl., Ex.

10); (3) Construction Laborer Trust Funds for Southern California Administrative Company v. Mallard Construction, Inc., Case No. 30-2019-01118743. (Norred Decl., Ex. 10); (4) Mallard Construction v. Faith Electric, Case No. 30-2019-01118743. (Norred Decl., Ex. 3); (5) Alberto Andrade v. Drake Traffic Control Services, Inc., (Norred Decl., Ex. 4). None of these cases involve Norred's accounting business. (Mark Plummer Decl., ¶ 4.)

First, Norred seeks to disqualify Plummer on the grounds he represented Norred as an officer and majority owner of Drake Traffic Control Services, Inc. and/or Mallard Construction Inc. Pursuant to California Rules of Professional Conduct, 1.13, "A lawyer employed or retained by an organization shall conform his or her representation to the concept that the client is the organization itself, acting through its duly authorized directors, officers, employees, members, shareholders, or other constituents overseeing the particular engagement." (See also *La Jolla Cove Motel & Hotel Apartments, Inc. v. Superior Ct.* (2004) 121 Cal.App.4th 773, 784 ["In representing a corporation, an attorney's client is the corporate entity, not individual shareholders or directors, and the individual shareholders or directors cannot presume that corporate counsel is protecting their interests."].) Therefore, to the extent Plummer represented Norred as an officer or majority owner of the corporations, the client was the corporation and not Norred.

Second, Norred argues Billing Statement sent by Plummer on 8-14-25 and 3-27-25 show Norred is a current client of Plummer. (Norred Decl., Exs. 2-3.) However, both Billing Statements are addressed to Drake Traffic Control Services, Inc. and Mallard Construction with attention to Norred, in his capacity as their CFO/Assistant CFO. (Plummer Decl., Exs. 1-2.) Therefore, the Billings Statements fail to show Plummer represented Norred personally or his accounting business as of 8-14-25 or 3-27-25 and is a current client of Plummer.

The only case where Plummer appears to have represented Norred both personally and in his capacity as a corporate officer is Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen. In this case Plummer filed a Complaint on behalf of both Norred and Drake Traffic for (1) Partnership Dissolution; (2) Attempted Extortion; and (3) Declaratory Relief. (Norred Decl., Ex. 4.) The case was filed on 06/08/2021 and was informally resolved by the parties without discovery and dismissed 2 months later on 08/20/21. (Mark Plummer Decl., ¶ 4, subd (2).) Therefore, based on this case, Norred has shown Plummer formerly represented Norred.

"Conflicts arising out of an attorney's successive representation of a former client and current client are governed by the substantially related standard. [Citation.]

		'Where an attorney successively represents clients with adverse interests, and where the subjects of the two representations are substantially related, the need to protect the first client's confidential information requires that the attorney be disqualified from the second representation. For the same reason, a presumption that an attorney has access to privileged and confidential matters relevant to a subsequent representation extends the attorney's disqualification vicariously to the attorney's entire firm.' [¶] The issue of successive representation of a former and a current client is not relevant, however, unless there is a former attorney-client relationship." (<i>Lynn v. George</i> (2017) 15 Cal.App.5th 630, 637.) "The party seeking disqualification has the burden to establish the attorney-client relationship." (Id. at p. 638.) Norred has failed to show the subject of Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen ("Mullen case") and the instant action are substantially related. Specifically, Norred has failed to show the Mullen case had anything to do with Norred's accounting business or that Plummer obtained any confidential information relevant to this case from representing Norred in the Mullen case. Norred has also failed to show that Plummer obtained privileged and/or confidential matters relevant to representation in this case from any of the other 5 cases Norred contends Plummer represented him. Accordingly, the motion to disqualify is DENIED. Moving party to give notice.
9	United Casualty & Surety Insurance Co. v. Rodeo Auto, Inc. 2025-01477225 Motion for Discharge, Award of Costs and Attorney Fees for Deposit and Dismissal of Plaintiff	Plaintiff executed a Motor Vehicle Dealer Bond, Bond No. UCSX900X2150, for defendant Rodeo Auto, Inc. dba Rexera Auto Group ("Rodeo") as principal in the sum of \$50,000.00 ("Bond") pursuant to California Vehicle Code sections 11710 and 11711. Plaintiff contends Defendants have made adverse and conflicting demands upon it regarding the Bond. As a result of these claims against the bond, and since Plaintiff is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 22, 2025, Plaintiff filed a verified complaint for interpleader. Interpleader is a procedure whereby a person holding money or personal property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (<i>City of Morgan Hill v. Brown</i> (1999) 71 Cal.App.4th 1114, 1122.) Once the stakeholder's right to interplead is established, and he or she deposits the money or personal property in court,

	he or she may be discharged from liability to any of the claimants. This enables the stakeholder to avoid multiplicity of actions and the risk of inconsistent results if each of the claimants were to sue him or her separately. (<i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 874.) "The true test of suitability for interpleader is the stakeholder's disavowal of interest in the property sought to be interpleaded, coupled with the perceived ability of the court to resolve the entire controversy as to entitlement to the property without need for the stakeholder to be a party to the suit." (<i>Pacific Loan Mgmt. Corp. v. Sup.Ct.</i> (Armstrong) (1987) 196 Cal.App.3d 1485, 1489-1490.) Code Civ. Proc. § 386, subdivision (b) provides as follows: Any person, firm, corporation, association, or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims. The action of interpleader may be maintained although the claims have not a common origin, are not identical but are averse to and independent of one another, or the claims are unliquidated and no liability on the part of the party bringing the action or filing the cross-complaint has arisen. Code Civ. Proc. § 386.5 provides: Where the only relief sought against one of the defendants is the payment of a stated amount of money alleged to be wrongfully withheld, such defendant may, upon affidavit that he is a mere stakeholder with no interest in the amount or any portion thereof and that conflicting demands have been made upon him for the amount by parties to the action, upon notice to such parties, apply to the court for an order discharging him from liability and dismissing him from the action on his depositing with the clerk of the court the amount in dispute and the court may, in its discretion, make such order. Here, Plaintiff has established that the Bond is in dispute, is subject to multiple claims that may give rise to multiple liability, and that future claims may arise. Importantly, Plaintiff declares that it is merely a stakeholder with no interest in the Bond's \$50,000 disputed amount or any portion thereof. Thus, Plaintiff has the right to interplead the funds with the court. Plaintiff seeks an award of Plaintiff only seeks \$10,000 for attorney fees and costs to be deducted from the Bond. Defendant Stephanie Sigala ("Defendant") filed an opposition only as to Plaintiff's request for an award of attorney fees and costs. Defendant argues the request should be denied
--	---

	because there are several claims that greatly exceed the amount of the Bond, which means the claimants will only get a pro-rata portion of their damages. According to Defendant, it is not fair that Plaintiff should get fees and costs while the consumers, who the law was designed to protect, do not. Defendant alternatively argues Plaintiff's fees and costs should be reduced to no more than \$3,500. "In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) The amount of attorney fees and costs must be restricted to those incurred as to the interpleader remedy. (<i>Sweeney v. McClaran</i> (1976) 58 Cal.App.3d 824, 830-831.) An award of fees and costs out of the penal sum of the bond are permissible even though such an award seriously depletes the amount of the bond. (<i>Sweeney, supra</i>, 58 Cal.App.3d at pp. 828-830.) Thus, Plaintiff is entitled to recover its fees and costs deducted from the Bond. Plaintiff's billing records establish it incurred \$14,018.01 in fees and costs. This amount represents 71.9 hours at hourly rates ranging from \$275 - \$325. The billing shows that the tasks are related to the interpleader remedy. The court finds the hours incurred and the hourly rates are reasonable. Plaintiff has not submitted any evidence contesting the reasonableness of the hourly rates and hours incurred. Although Plaintiff reasonably incurred \$14,018.01, Plaintiff only seeks \$10,000 in fees and costs. Accordingly, the Court GRANTS the Motion and ORDERS as follows: 1. The Court awards Plaintiff \$10,000, to be deducted from the \$50,000 bond amount per Code Civ. Proc. § 386.6. 2. Plaintiff is to deposit \$40,000 with the court. 3. All parties to this action, and each of them, and their respective attorneys, are restrained from instituting or further prosecuting any other proceeding in any other court in the State of California, or other jurisdiction, affecting the rights and obligations between the parties to this interpleader based upon the Motor Vehicle Dealer Bond, Bond No. UCSX900X2150, for defendant Rodeo Auto, Inc. dba Rexera Auto Group. 4. The Court finds Plaintiff is a disinterested stakeholder and shall be discharged from liability and dismissed with prejudice from this case. The previously set trial date remains. Plaintiff to give notice.
--	--

12	Bennett v. General Motors, LLC 2023-01366979 Motion for Summary Judgment and or Adjudication CMC	Defendant General Motors LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication, is GRANTED in part and DENIED in part. Separate statement defects While Defendant seeks summary adjudication in the alternative, Defendant's separate statement does not comply with California Rules of Court, rule 3.1350, subdivision (h) as it does not set forth individual issue statements as to each cause of action. Plaintiff's separate statement is also defective as it does not comply with the formatting rules pursuant to California Rules of Court, rule 3.1350, subdivisions (f) and (h), including the two-column format. The Court puts counsel on notice all future filings must comply with these rules. Plaintiff's objections to evidence Plaintiff's objections to evidence are OVERRULED. First cause of action for breach of express warranty Commercial Code section 2313, subdivision (1) provides in part: "Express warranties by the seller are created as follows: (a) Any affirmation of fact or promise made by the seller to the buyer which relates to the goods and becomes part of the basis of the bargain creates an express warranty that the goods shall conform to the affirmation or promise. (b) Any description of the goods which is made part of the basis of the bargain creates an express warranty that the good shall conform to the description. . . . (2) It is not necessary to the creation of an express warranty that the seller use formal words such as 'warranty' or 'guarantee' or that he have a specific intention to make a warranty" "To prevail on a breach of express warranty claim, the plaintiff must prove (1) the seller's statements constitute an affirmation of fact or promise or a description of the goods; (2) the statement was part of the basis of the bargain; and (3) the warranty was breached." (<i>Weinstat v. Dentsply Internat. Inc.</i> (2010) 180 Cal.App.4th 1213, 1228.) GM contends Plaintiff's first cause of action for breach of express warranty fails because Plaintiff purchased the vehicle from a third-party dealership. In doing so, GM relies on <i>Ballesteros v. Ford Motor Co.</i> (2025) 109 Cal.App.5th 1196, 1216-1217, which states, "[t]he California Uniform Commercial Code's express warranty provisions are limited to warranties given by the seller directly to the buyer." "It is true that older California cases have held that 'privity of contract is required in an action for breach of either express or implied warranty and that there is no privity
----	--	---

	between the original seller and a subsequent purchaser who is in no way a party to the original sale.’ . . . But since adopting the UCC, California no longer requires privity for a breach of express warranty claim.” (<i>Alves v. Mercedes-Benz USA, LLC</i> (C.D. Cal. 2024) 2024 WL 4406813, at *4 [citations omitted].) Moreover, the court in <i>Rodriguez v. FCA US, LLC</i> (2022) 77 Cal.App.5th 209, 225 stated that while the Song-Beverly Consumer Warranty Act may not apply to used vehicles that was only accompanied by a balance of the original warranty, “the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code.” [Citing Com. Code, §§ 2313, 2714, 2715.] When Plaintiff purchased the subject vehicle, she received the balance of the warranty originally issued by GM. (UMF No. 8.) The Court DENIES summary adjudication of the first cause of action. Second cause of action for violation of the Magnuson-Moss Warranty Act Defendant contends Plaintiff’s cause of action for violation of the Magnuson-Moss Warranty Act fails as a matter of law because Plaintiff’s state law claims fail. As the Court denied summary adjudication as to the first cause of action under Commercial Code section 2313, the Court DENIES summary adjudication of the second cause of action. Fourth cause of action under the Consumer Legal Remedies Act (CLRA), Civ. Code, § 1770 The CLRA proscribes specified “unfair methods of competition and unfair or deceptive acts or practices” in transactions for the sale or lease of goods to consumers. (Civ. Code, § 1770, subd. (a).) The unlawful acts or practices include representing that goods have characteristics they do not have and representing that goods are of a particular standard, quality, or grade, if they are of another. (<i>Id.</i>, subds. (a)(5)); and (a)(7).) The CLRA prohibits affirmative misrepresentations as well as omissions of fact that are: (1) contrary to a representation actually made by the defendant; or (2) a fact the defendant was obligated to disclose.” (<i>Gutierrez v. CarMax Auto Superstores Cal.</i> (2018) 19 Cal.App.5th 1234, 1255.) “[A] duty to disclose material safety concerns ‘can be actionable in four situations: (1) when the defendant is in a fiduciary
--	---

		relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact.” (<i>Id.</i> at p. 1260 [citation omitted].) GM did not have any contact with Plaintiff, and GM did not make any representations to the Plaintiff. (Jensen Decl., ¶ 9.) Plaintiff does not otherwise present any evidence giving rise to a duty to disclose, including that GM had exclusive knowledge of material facts not known to Plaintiff or made partial representations while suppressing some material fact. While Plaintiff submits evidence employees at GM’s authorized repair facility represented the vehicle was operating as intended and safe to drive (Bennett Decl., ¶¶ 3-8), Plaintiff does not present evidence these employees were agents of GM, had exclusive knowledge of material facts not known to Plaintiff, or concealed any material facts. The Court GRANTS summary adjudication of the fourth cause of action.
13	Doe #1 v. Roe 1 2022-01299923 Motion for Summary Judgment and or Adjudication	Defendant The General of the Assemblies of God’s Motion for Summary Judgment or Alternatively Summary Adjudication is GRANTED. Defendant moves for an order granting summary judgment in its favor and against Plaintiff John Doe #1 J.H. (“Plaintiff”), or in the alternative, for summary adjudication of the 32 issues listed in its notice. Plaintiff filed this case under Code of Civ. Proc., § 340.1, the “revivor” statute for child sexual abuse. Plaintiff alleges he was sexually abused in 1983-1985 as a minor at a local church in Riverside, the Pedley Assembly of God Church (“Church”). (First Amended Complaint (“FAC”), ¶¶ 4, 37; UMF Nos. 18, 24, 32.) Plaintiff is unable to identify the alleged wrongdoer, whom he names simply as “Jerry W.” Plaintiff alleges the alleged wrongdoer was involved in a youth program at the Church, the church’s “Royal Rangers” group. (UMF No. 18.) Plaintiff has five remaining claims against Defendant: (1) Sexual Abuse of a Minor (First Cause of Action), (2) Intentional Infliction of Emotional Distress (“IIED”) (Second Cause of Action), (3) Negligence (Fourth Cause of Action), (4) Negligent Supervision (Fifth Cause of Action), and (5) Battery (Seventh Cause of Action). All the claims are based on the alleged sexual abuse by Jerry W. (UMF No. 35; FAC, ¶ 5.) Legal Standard

"A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c, subd. (p)(2); *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].)

Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th 826 at pp. 849–850.) The plaintiff must set forth specific facts and may not merely "rely on the allegations or denials of its pleadings" (Code Civ. Proc., § 437c, subd. (p)(2).)

In determining whether a triable issue of material fact exists, "the moving party's affidavits are strictly construed while those of the opposing party are liberally construed." (*Villacres, supra*, 189 Cal.App.4th at p. 575.) "[T]he facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true." (*Ibid.*)

Vicarious Liability

Defendant argues Plaintiff's claims fail as a matter of law because a tortfeasor's sexual abuse of a minor cannot be attributed to the entity on a vicarious liability theory of respondeat superior. Plaintiff's claims are all based on the alleged sexual abuse by Jerry W. when Plaintiff was a minor. (See FAC, ¶ 5.)

Employers are not liable for child abuse perpetrated by their employees under the doctrine of respondeat superior. (*John R. v. Oakland Unified School District* (1989) 48 Cal.3d 438 [school district not liable for sexual abuse of student by teacher under respondeat superior]; *Rita M. v. Roman Catholic Archbishop* (1986) 187 Cal.App.3d 1453, 1461 [church not liable for sexual abuse of child by priest]; *Jeffrey E. v. Central Baptist Church* (1988) 197 Cal.App.3d 718

	[church not liable for sexual abuse of minor by Sunday school teacher].) Accordingly, to the extent Plaintiff seeks to hold Defendant indirectly liable under the doctrine of respondeat superior, the claims fail as a matter of law. Ratification To the extent Plaintiff seeks to hold Defendant directly liable for his claims under a ratification theory (see FAC, ¶ 17), the claims fail. "Ratification is the subsequent adoption by one claiming the benefits of an act, which without authority, another has voluntarily done while ostensibly acting as the agent of him who affirms the act and who had the power to confer authority." (<i>Reusche v. Cal. Pacific Title Ins. Co.</i> (1965) 231 Cal.App.2d 731, 737.) "[A] principal is not bound by ratification unless he acts with knowledge of all the material facts involved in the unauthorized transaction, particularly with knowledge of the acts of the person who assumed to act as his agent. This knowledge is equally necessary whether the ratification be express or implied." (<i>Bate v. Marsteller</i> (1959) 175 Cal.App.2d 573, 582.) Here, the undisputed facts show Defendant had no knowledge or notice of any wrongdoing. Namely, neither Plaintiff nor anyone else ever reported the alleged abuse to Defendant. (UMF Nos. 33, 85.) Defendant first heard of Plaintiff's allegations when it was served with the FAC in this case on June 13, 2024. (UMF No. 34.) In addition, Plaintiff is unable to provide any facts that Defendant ratified the alleged sexual abuse by Jerry W. (UMF No. 84.) Existence of a Duty/Special Relationship Defendant argues Plaintiff's claims fail because it owed no duty to Plaintiff. Defendant contends an essential element of any claim is the existence of a duty. As an initial matter, the argument fails as to the second and seventh causes of action for IIED and Battery, respectively. Duty is not an essential element of either of these intentional torts. (See <i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161 [listing elements of IIED]; <i>Piedra v. Dugan</i> (2004) 123 Cal.App.4th 1483, 1495 [listing elements of Civil Battery].) Duty is an essential element of the remaining first, fourth and fifth causes of action for Sexual Abuse of a Minor, Negligence, and Negligent Supervision, respectively. "A plaintiff must satisfy both the special relationship test and the <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108] factors before a duty to protect the plaintiff from third party harm
--	--

		can be imposed on the defendant.” (<i>Brown v. USA Taekwondo</i> (2021) 11 Cal.5th 204, 212-213 [affirming this two-part framework].) If there is no “special relationship” in the first instance, then there is no need to analyze the <i>Rowland</i> factors. (<i>Id.</i> p. 222.) “In a case involving harm caused by a third party, a person may have an affirmative duty to protect the victim of another's harm if that person is in what the law calls a ‘special relationship’ with either the victim or the person who created the harm. [Citation.] [¶] A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party's] conduct.’ [Citation.] Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. [Citation.]” (<i>Brown, supra</i>, 11 Cal.5th pp. 215-216.) “The key in each [special relationship] is that defendant’s relationship with ... the tortfeasor ... places the defendant in the best position to protect against the risk of harm . . . Thus, the defendant's ability to control the person who caused the harm must be such that “if exercised, [it] would meaningfully reduce the risk of the harm that actually occurred.” (<i>Barenborg v. Sigma Alpha Epsilon Fraternity</i> (2019) 33 Cal.App.5th 70, 78.) Here, Defendant’s evidence establishes it did not have a special relationship with either Plaintiff or the alleged wrongdoer, Jerry W. Defendant is a fellowship of over 7,300 affiliated local churches, which has nearly 2.5 million members and adherents, and credentialed ministers. It has no role regarding other staff members or volunteers of local churches or their programs, including this Church’s Royal Rangers group. (UMF Nos. 9, 11, 17, 18, 22, 29-31.) Defendant’s religious doctrines prohibit it from interfering with the local church’s employment practices. (UMF No. 30; Kesler Decl., ¶ 15.) In addition, individual parishioners of a church are members or attendees of the local church, not of Defendant. (UMF No. 10.) Defendant had no control or oversight over and no relationship with Plaintiff. (UMF Nos. 12, 14.) Plaintiff was not a member or attendee of Defendant. (UMF No.13.) Plaintiff attended a local church in Riverside, California. (UMF No. 12.) Based on this evidence, Defendant had no control or oversight over Plaintiff, nor was it in a position to control Jerry W. Therefore, no special relationship existed and there is no need to analyze the <i>Rowland</i> factors. Defendant has met its initial burden of establishing no duty to protect Plaintiff existed.
--	--	---

Fourth Cause of Action: Negligence

There are four essential elements of a negligence claim: duty, breach, causation, and injury. (*Vasilenko v. Grace Family Church* (2017) 3 Cal.5th 1077, 1083.) Here, in addition to failing on the first element, as discussed above, these causes of action also fail on the second element. Even if Defendant owed Plaintiff a duty, there is no evidence that Defendant breached any duty. Individual parishioners of a church are members or attendees of the local church, not Defendant. (UMF No. 10.) Defendant had no control or oversight over and no relationship with Plaintiff. (UMF Nos. 12, 14.) Plaintiff was not a member or attendee of Defendant. (UMF No.13.) Plaintiff attended a local church in Riverside, California. (UMF No. 12.) Since Defendant did not have any connection with Plaintiff or a special relationship, it could not breach any duty. Defendant did not become aware of any allegations against Jerry W. until service of the FAC on June 13, 2024. (UMF No. 34.)

Fifth Cause of Action: Negligent Supervision

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. Negligence liability will be imposed upon the employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815; see *Rancho Cucamonga Central School Dist. v. Superior Court* (2025) 116 Cal.App.5th 718, 721 ["the school district may be liable for hiring, supervising, or retaining an employee if the district's supervisory personnel had actual or constructive knowledge of the employee's dangerous propensities."].)

There is no evidence that Defendant had any such knowledge. Defendant never employed Jerry W. (UMF No. 27.) Jerry W. was never an agent of Defendant. (UMF No. 28.) Defendant had no knowledge of or involvement with Jerry W., who is alleged to have been a youth leader at the Church. Defendant had no role regarding staff members or volunteers of local churches or their programs, including the Church's Royal Rangers group. (UMF Nos. 9, 11, 17, 18, 22, 29-31.) Defendant's religious doctrines prohibit it from interfering with the local church's employment practices. (UMF No. 30; Kesler Decl., ¶ 15.)

IIED

"The elements of a cause of action for intentional infliction of emotional distress are (i) outrageous conduct by defendant, (ii) an intention by defendant to cause, or reckless disregard of the probability of causing, emotional distress, (iii) severe emotional distress, and (iv) an actual and proximate causal link between the tortious conduct and the emotional distress.

		[Citation.] The [c]onduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (<i>Nally v. Grace Community Church</i> (1988) 47 Cal.3d 278, 300.) The evidence shows none of the elements can be established. As discussed, Defendant was not aware or received notice of the alleged abuse by Jerry W. Defendant had no relationship with Plaintiff. Plaintiff has no evidence that Defendant intended to cause Plaintiff injury or engaged in conduct realizing that injury would result. Seventh Cause of Action: Battery "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching."(<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669.) As discussed above, the evidence establishes Defendant had no contact with Plaintiff. Thus, Plaintiff cannot establish the first element. Statute of Limitations: IIED and Battery Defendant argues the second and seventh causes of action for IIED and Battery are barred by the two-year statute of limitations under Code Civ. Proc., § 335.1 because the abuse occurred during 1983-1985 and Plaintiff did not file his complaint until December 29, 2022. Plaintiff, however, commenced this action under Code of Civil Procedure section 340.1, the "revivor" statute for child sexual abuse. These causes of action arise out of the alleged child sexual abuse. None of the cases Defendant cites hold that section 340.1 does not revive causes of action that expressly arise out of or are based on alleged child sexual abuse. Therefore, Defendant has not established these claims are time barred. Based on the foregoing, Defendant has met its initial burden. Plaintiff has not filed an opposition. Therefore, he has not met his burden of establishing triable issues of material fact. Defendant's motion for summary judgment is granted.
14	Huynh v. Williams 2024-01436961 Motion to appear P:ro Hac Vice	Lloyd E. Kelley, Esq. has complied with Cal. Rules of Court, rule 940. Therefore, the unopposed application should be granted. The application of attorney Lloyd E. Kelley, Esq. to appear pro hac vice as counsel for defendant Gerard Richard Williams III in this matter is hereby GRANTED pursuant to California Rules of Court, Rule 9.40.
